02 — Terms of service (a business's subscription)

Français (version de référence) : ../fr/02-conditions-service-saas.md

Header	
Publisher	Nhill Solution, Kinshasa (Democratic Republic of the Congo)
Version	3.0.0 — 28 October 2026
Status	written without review by a lawyer or a tax adviser; recommended review points: V-01, V-02, V-03, V-04, V-10, V-12 (00 § 5). The French version is the reference text
Assumptions	H-01, H-02, H-03, H-09, H-10, H-11, H-14, H-17, H-20 (00 § 2)
Contract documents	1. the written proposal accepted by the Customer (plan, limits, term, price, currency, payment methods, grace period); 2. these terms; 3. the data processing agreement (document 06); 4. the service commitment (document 07); 5. the acceptable use policy (document 08). In case of conflict, they prevail in that order

Parties

These terms bind **Nhill Solution**, with its head office in Kinshasa (Democratic Republic of the Congo), hereinafter the "Publisher", and the business identified in the written proposal it accepts or in its Nhill account, hereinafter the "Customer".

The Customer accepts them by accepting the Publisher's proposal in writing (signature, or reply by e-mail from the account holder's address) or, for a plan ordered in the application, by confirming the order in the application.

1. Purpose

The Publisher provides the Customer with access, over the Internet, to the Nhill business management and point-of-sale software (Nhill Business and, depending on the plan, Nhill POS), hosted by the Publisher and its processors, together with the onboarding and support described in articles 7 and 8.

2. Trial and term

2.1 **Assisted free trial**: 30 days, once per business, with no payment details and no commitment (document 09).

2.2 **Subscription**: for the term stated in the accepted proposal or chosen in the application. The new period starts at the end of the current one.

2.3 **Renewal**: the subscription renews automatically only if the business's account holder has expressly agreed to it in the application, where the plan allows it; they may withdraw this agreement at any time. Without this agreement, the subscription ends on its due date and the Customer renews by paying for a new period. Reminders are sent before the due date.

3. Plans, prices and payment

3.1 No price is published. The plan (functions, limits on users, tills and warehouses), the term, the price, the currency and the payment methods are those of the proposal accepted by the Customer or of the summary calculated by the server and confirmed in the application.

3.2 A payment is deemed received when the payment provider confirms it (notification verified by the server) or when the Publisher records it after receiving the funds. The Customer's rights change only at that moment.

3.3 **Change of plan**: moving to a higher plan takes effect upon payment; moving to a lower plan takes effect at the end of the current period.

3.4 **Invoicing**: the Publisher gives the Customer an invoice for each payment.

4. Late payment

If payment is not received by the due date, the Service remains fully available during the grace period stated in the proposal or in the application. After that, the business switches to **read-only**: its data can still be viewed and exported, but can no longer be changed until payment.

5. Publisher's obligations

5.1 Provide the Service with due care, in line with its documentation.

5.2 Keep each business's data separate from the others' and protect the Service with reasonable security measures (encrypted connections, access control, activity log, encrypted backups), summarised in document 13. No measure guarantees the complete absence of vulnerabilities.

5.3 Announce scheduled maintenance in advance whenever possible.

5.4 Process the Customer's data in accordance with the data processing agreement (document 06).

6. Customer's obligations

6.1 Use the Service in accordance with the terms of use (document 01) and the acceptable use policy (document 08).

6.2 Create a personal account for each user, assign the appropriate roles, remove access for people who leave the business.

6.3 Inform its staff about the activity log (model notice: document 17).

6.4 Check the tax settings (rates, notices) and meet its tax and accounting obligations. **Nhill is not an invoicing device approved or standardised by a tax administration**: a Customer required to do so uses an approved fiscal device.

6.5 Have Internet access and compatible devices (installation guide).

7. Onboarding

Onboarding (demonstration, installation, catalogue import, user training) is provided during the assisted trial; additional onboarding may be included in the proposal.

8. Support

Support through the "Help and support" menu of the applications and by e-mail at support@nhill.online. The Publisher handles requests by severity, first those that prevent selling or taking payments; no response time is guaranteed (document 07).

9. Customer data

9.1 The Customer remains the owner of its data. The Publisher acts as a processor (document 06).

9.2 **Export and reversibility**: the Customer can export its data at any time, including in read-only mode, and the account holder can download the full archive of the business's data. At the end of the contract, the data remains available for viewing and export for 90 days, then is deleted, unless the law requires keeping it; backup copies then disappear as they rotate (document 15). The Customer keeps its own accounting records for the legal period (10 years under OHADA law).

9.3 **Operating statistics**: the Publisher consults overall figures per business (number of documents, volumes per currency, active users) to operate the Service and provide support; each consultation is recorded in the Customer's activity log.

10. Liability

10.1 The Publisher has an obligation of means. Each party is liable for proven direct damage caused by its fault.

10.2 The Publisher is not liable for indirect damage, such as loss of profit, loss of customers or damage to reputation, nor for the consequences of an incorrect entry, of settings made by the Customer, of a document issued by the Customer or of the Customer's failure to meet its tax obligations, nor for power or Internet outages at the Customer's premises.

10.3 The Publisher's total liability is limited to the amounts paid by the Customer for the Service during the 12 months before the event that caused the damage. These limits do not apply in case of gross negligence or wilful misconduct, of personal injury, or where an applicable mandatory rule forbids them.

11. Force majeure

Neither party is liable for a failure caused by force majeure within the meaning of the applicable law (in particular serious unrest, disaster, widespread network outage). The party prevented informs the other without delay.

12. End of the contract

12.1 The Customer can end its subscription in accordance with the accepted proposal; without an accepted automatic renewal, the subscription ends on its due date.

12.2 The Publisher may suspend an access in case of use contrary to the law or to these terms, after a warning except in an emergency (security, fraud, request from an authority). Either party may end the contract in case of a serious breach by the other that remains unremedied after a written formal notice.

12.3 Articles 9 (data), 10 (liability) and 13 (confidentiality) continue to apply after the end of the contract.

13. Confidentiality

Each party keeps the other's non-public information confidential, during the contract and for as long as it has not become public through no fault of its own.

14. Processors

The Publisher has the Service hosted by Hostinger International Ltd (Cyprus), on a server located in France, under the conditions of document 06.

15. Changes

The Publisher may change these terms. Significant changes are announced to the Customer before they take effect; they apply to a period already paid only with its agreement, unless a legal obligation requires them.

16. Governing law and disputes

These terms are governed by the law of the Democratic Republic of the Congo, including the OHADA Uniform Acts. In case of dispute, the parties first look for an amicable solution; failing that, the competent courts of Kinshasa have jurisdiction. These choices do not deprive the Customer of the protection of the mandatory rules of its country.